

proceeds of the sale are directed to be taken as personalty, the testator must be understood to mean for the purposes of the will only, and not for any object beyond it.

Resulting trust of personal estate.—With respect to resulting trusts of *personal* estate, the general residuary bequest was always held to sweep every interest, whether undisposed of by the will, or undisposed of in event, and therefore it is only where the will contains no residuary clause that the next of kin can assert a claim to the benefit of the resulting interest (*c*). But if any part of the personal estate be expressly excepted from the residue, as if a testator reserve a sum to be disposed of by a codicil, and give the residue not disposed of or reserved to be disposed of to A., and no codicil is executed, the sum so specially excepted will then result to the next of kin (*d*).

[*161] **Sixthly. Case of settlor or devisor dying without*

heir or next of kin.—[In the case of the death of a settlor intestate, without heir or next of kin, the undisposed of beneficial interest in real estate, if the death occurred before the 14th August, 1884, sank into the land for the benefit of the trustee or legal tenant (*a*); and where the death occurs since that date, it escheats to the lord as if the interest were a legal estate in corporeal hereditaments (*b*);] but in the case of personalty the resulting interest, as *bonum vacans*, will fall to the Crown by the prerogative (*c*).

Of resulting trusts in gifts to charities.—*Lastly*, it may be noticed that settlements to *charitable* purposes are an exception from the law of resulting trusts: for, upon the construction of instruments of this kind, the Court has adopted the following rules:—

Cas. 404.] As to *Mallabar v. Mallabar*, Cas. t. Talb. 78, see *Phillips v. Phillips*, 1 M. & K. 660.

(*c*) See *Dawson v. Clarke*, 15 Ves. 417; *Brown v. Higgs*, 4 Ves. 708; *S. C.* 8 Ves. 570; *Shanley v. Baker*, 4 Ves. 732; *Jackson v. Kelly*, 2 Ves. 285; *Oke v. Heath*, 1 Ves. 141; *Cambridge v. Rous*, 8 Ves. 25; *Cooke v. Stationers' Company*, 3 M. & K. 264.

(*d*) *Davers v. Dewes*, 3 P. W. 40;

Attorney-General v. Johnstone, Amb. 577.

(*a*) *Burgess v. Wheate*, 1 Eden, 177; *Henchman v. Attorney-General*, 3 M. & K. 485; *Taylor v. Haygarth*, 14 Sim. 8; *Davall v. New River Company*, 3 De G. & Sm. 394; *Cox v. Parker*, 22 Beav. 168.

[(*b*) 47 & 48 Vict. c. 71, s. 4.]

(*c*) *Middleton v. Spicer*, 1 B. C. C. 201; *Barclay v. Russell*, 3 Ves. 424;